

25STLC02833 25STLC02833

County: los-angeles

Division: Civil Law and Motion

Department: 26

Hearing date: 2026-07-01

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Case Number: 25STLC02833 Hearing Date: July 1, 2026 Dept: 26

TENTATIVE RULING:

Defendant Esurance Insurance Company's Demurrer to Complaint is sustained with 20 days' leave to amend.

Analysis:

Plaintiff Irina Margaryan ("Plaintiff") filed the instant action for breach of contract against Defendant Esurance Insurance Company ("Defendant") on April 9, 2025. It is not known when Defendant was served with the Summons and Complaint in this action. Defendant filed the instant Demurrer to the Complaint on June 5, 2026. Plaintiff filed an opposition on June 11, 2026.

Discussion

A meet and confer declaration is required by Code of Civil Procedure section 430.41. The Demurrer is accompanied by a minimal meet and confer declaration that simply states Plaintiff failed to respond to Defendant's request to meet and confer, or otherwise failed to meet and confer in good faith. (Declaration of Demurring Party, filed 06/05/26, ¶12b.) After the Demurrer was filed, Plaintiff's counsel sent a response stating that a First Amended Complaint has been prepared to address the issues raised in the Demurrer. (Opp., Torosian Decl., Exh. B.) Plaintiff's supporting exhibits, therefore, are in agreement with the Demurrer the Complaint is defective and in need of amendment.

Indeed, a review of the Complaint

demonstrates that it lacks the basic elements of a cause of action for breach of contract. The elements of a cause of action for breach of contract are (1) the existence of a valid contract, (2) plaintiff's performance of his obligations, or excuse from performance, (3) defendant's breach of the contract, and (4) resulting damages to plaintiff. (CACI No. 303; Richman v. Hartley (2014) 224 Cal.App.4th 1182, 1186.) The Complaint makes no allegation of the breach of the purported contract by Defendant. (Compl., ¶BC-2.)

In light of the foregoing, the
Demurrer to the Complaint is sustained with leave to amend.

Conclusion

Defendant Esurance Insurance Company's Demurrer to Complaint
is sustained with 20 days' leave to amend.

Moving party to give notice.